ROPAFADZO SIBUSISO CHIDAWU
and
PREMIX CONCRETE (PRIVATE LIMITED
versus
GILBERT MAREBE
and
MUCHADEYI ASHTON MASUNDA
and
SPIWE CHIDAWU
and
BROADWAY INVESTMENTS (PRIVATE) LIMITED

HIGH COURT OF ZIMBABWE
**MANYANGADZE J**
HARARE; 28 May & 8 July, 9 July 2026

**Opposed application**

*A S Ndlovu*, for the applicants
*G Muromo*, for the respondents

**MANYANGADZE J**

**INTRODUCTION**

The applicants seek an order for contempt of court against the respondents. The application arises out of orders granted by this court in HCH 5196/22 and HCH 209/24. The relief sought by the applicants is in the following terms:

> "1. The 1st Respondent is found to be in contempt of the court order in HC 5196/22.
> 2. The 1st Respondent is ordered to pay a fine of USD10, 000.00 within one (1) month, failing which he shall be committed to prison for six (6) months.
> 3. The 1st Respondent shall forthwith comply with the order in HC5196/22.
> 4. The 1st-4th Respondents are found to be in contempt of the order in HCHC209/24.
> 5. The 1st, 2nd and 3rd Respondents shall each personally pay a fine of USD10, 000.00 within one (1) month, failing which they shall each be committed to prison for six (6) months.
> 6. The 1st 3rd Respondents shall jointly and severally, the one paying the other to be absolved, pay the Applicants' costs of suit on the legal practitioner and client scale."

**BACKGROUND**

On 22 November 2022, the entity known as Premix Concrete (Pvt) Ltd (the second applicant in the instant case), obtained an order against one Albert Chidawu and Gilbert Marebe (the first respondent in the instant case) which interdicted the respondents from interfering with the affairs of the second applicant.

On 27 March 2024, the second respondent convened a meeting of the shareholders of the second applicant. According to his explanation, he did so in his capacity as chairman of the fourth respondent, which is said to be the sole shareholder of the second applicant.
The said meeting was attended by the applicant, the first and third respondents, among other persons. The second respondent, who convened the meeting, had his proxy in attendance. The meeting resolved that the first applicant be removed from the directorship of the company, the first respondent be appointed as company secretary and the second applicant be re-registered on the new system at the Deeds and Companies Registry.

Meanwhile, the first applicant had filed an urgent chamber application for an order stopping this meeting, under HCH 209/24. At the meeting, she advised those in attendance of the urgent chamber application and exhibited a copy of the order, or what she claimed was an order of the court, issued on 26 March 2024, prohibiting the holding of the meeting. The respondents in attendance went ahead with the meeting, resulting in the passing of the aforementioned resolutions.

The holding of this meeting, and the resultant resolutions, constitute the subject matter of the contempt proceedings.

**APPLICANTS' CASE**

The first applicant filed the application on her own behalf, as first applicant, and as director of the second applicant.

The applicants aver that the order issued under HCH 5196/22 was specifically against the first respondent. His attendance and participation in the meeting of 27 March 2024 was in defiance of the court order, which prohibited him from interfering in the affairs of the second applicant.

The applicants contend that the first respondent was not a reluctant and passive figure at this meeting. He voluntarily attended and participated in the meeting, during which he accepted appointment as Company Secretary. The applicants assert that this was a clear, deliberate and inexcusable breach of the court order in HCH 5196/22.

In respect of the Case No. HCH 209/24, which specifically related to the meeting of 27 March 2024, the applicants insist that all the respondents be found guilty of contempt of court. This was a provisional order whose interim relief was a prohibition of this meeting. The applicants contend that the holding of this meeting was in clear defiance of the interim order issued by this court.

The applicants point out that the respondents were served with the urgent chamber application seeking to stop the meeting on 22 March 2024. They deposed to opposing affidavits on 25 March 2024. They were therefore fully aware of the relief being sought. The interim order was granted on 26 March 2024.

The first applicant further points out that she attended the said meeting, advised the respondents in attendance of the court order prohibiting the meeting and showed them a copy of the order. The respondents ignored the court order and went ahead with the meeting.

**RESPONDENTS' CASE**

In their response to the preliminary point raised by the applicants, to the effect that there was no opposition from the third respondent, the respondents aver that the first and second respondents, in their opposing affidavits, swore positively to facts concerning the third respondent. They contend that it cannot be said that the third respondent did not oppose the application. There was no requirement that she files her own opposing affidavit.

In their heads of argument, the respondents did not pursue the preliminary point they had raised impugning the first applicant's authority to represent the second applicant. They indicated that the point will be covered under merits.

On the merits of the matter, the respondents contend that the order under HCH 5196/22 was too broad and vague. In their view, it relates exclusively to the daily operations of the second applicant. It does not relate to directorship and shareholding. They aver that no court order barred the first respondent from holding office in the second applicant and exercising duties of such office.

In respect of the interim order under HCH 209/24, the respondents allege that the document exhibited by the first applicant at the meeting did not look like an authentic court order. It had no date stamp or QR code. They could not stop the meeting on the basis of what appeared to them to be a dubious document.

The respondents contend that a heavy onus lies on an applicant alleging contempt of court and the applicant failed to discharge such onus.

**THE LAW**

The law on contempt of court is clearly set out in the authorities. There are four fundamental requirements, which are:

(i) There must be an extant court order

(ii) The respondent was personally served with the order or it was otherwise brought to his /her personal notice

(iii) The respondent is fully aware of the provisions of the order and what it requires of him/her

(iv) The respondent deliberately disobeyed the order with the intention to malign the dignity of the court

Both parties referred the court to cases illustrating the above principles. These include *Moyo v Macheka* SC 55/05, *Mukambirwa & Ors* v *Gospel of God Church International* SC 8/14, *Minister of Lands & Others* v *CFU* 2000 (2) ZLR 457 (S), *Borges* v *Shumba* HH 403/21, *Dynamic Success (Pvt) Ltd* v *SinoHydro Corporation Ltd Zimbabwe* HH 413/24.
In *Mukambirwa & Ors* v *Gospel of God Church*, *supra*, GOWORA JA (as she then was) stated:

> "The crime of contempt of court is committed intentionally and in relation to administration of justice in the courts... Before holding a party to be in contempt of a court order, a court must be satisfied that there is a court order which is extant, that the order has been served on the individuals concerned and that the individuals in question know what it requires them to do or not do, that knowing what the order dictates, the individuals concerned deliberately and consciously disobeyed the order....In addition to the above the court must be satisfied that, not only was the order not complied with but also that the non-compliance on the part of the defaulting party was wilful and *mala fide*.... The general rule is that no judgment or court order will be enforced by process of contempt unless a copy of the order has been served personally on the person required to do or abstain from doing the act in question."

**APPLICATION OF THE LAW**

*In respect of HCH 5126*

As already indicated, the court order under this case number relates specifically to the first respondent. The order reads as follows:

> "1. The Respondents and all those acting through them be and are hereby interdicted from interfering with the Applicants operations and affairs in any manner whatsoever.
> 2. The Respondents and all those acting through them be and are hereby interdicted from entering the Applicants plant and premises at No.52 Kelvin Road North, Harare without the Applicants leave.
> 3. Should the Respondents or anyone acting through them fail to comply with the terms of paragraph 2 above the Sheriff of the High Court Zimbabwe and the Zimbabwe Republic Police be and are hereby empowered to remove the Respondents and all those acting through them from the said premises known as No. 52 Kelvin North, Harare.

> 4. The Respondents shall bear the costs of this application jointly and severally the one paying the other to be absolved on the Attorney-Client scale."

The import of the order is expressed in paragraph 25 of the applicant's heads of argument in the following terms:

> "The Order granted in HC 5196/22 was directed specifically at the 1st Respondent. It expressly interdicted him from interfering in the affairs of the 2nd Applicant "*in any manner whatsoever:*" Not "some manner." Not "where convenient." **Any manner whatsoever**. The language was not drafted in riddles or veiled in ambiguity. It was as plain as judicial authority can be: *hands off the 2nd Applicant.*"

It seems to me the applicant has adopted a simplistic approach. She is looking at the situation in black and white terms. In the above-cited paragraph, the applicant places emphasis on the expression "*in any manner whatsoever.*" She has overlooked an equally important word that she has used, which is "*interfering*". The proscribed conduct must interfere with the operations and affairs of the second applicant. The word entails impeding, obstructing, preventing or disrupting the operations of the second applicant.

It is difficult to envisage how the meeting complained of, at least on the part of the first respondent, constituted impediment or disruption of the operations of the second applicant to amount to interference. A look at the papers filed in HCH 5196/22, especially the applicant's founding affidavit, shows the events that instigated the application for an interdict in that matter. The first respondent had taken the keys to the factory plant, preventing workers from accessing the plant and therefore disrupting production. The second respondent, who is first respondent herein, was associated with that conduct. That clearly was interference, and the interdict, it seems to me, was intended to prevent such or similar interference.

The interdict was obtained in November 2022. The meeting in question was convened in March 2024, 16 months later. The contempt proceedings were instituted in March 2025, 15 months later. Nothing has been placed before the court to show how the operations of the second applicant have been disrupted or interfered with.

As seen in the cases cited, the evidentiary onus in contempt proceeding is a heavy one. Since they carry the possibility of the respondent's imprisonment, they assume the character of quasi-criminal proceedings. The alleged non- compliance must be accompanied by the requisite *mens rea*, which is that the disobedience was wilful and *mala fide*.

The first respondent attended the meeting as an administrative functionary. It was a shareholders meeting. He was not one of the shareholders. It might be a different matter if the shareholders were respondents in the interdict of November 2022. Not even one of them was cited in that case.

It is the court's considered view that the first respondent's attendance at the meeting of 27 March 2024 cannot be said to constitute a deliberate, wilful and *mala fide* refusal to comply with the order in HCH 5196/22.

*In respect of HCH 209/24*

This case relates to the interim order interdicting the respondents from holding the meeting of 27 March 2024. The critical question is,

> "*Was this order personally served on the respondents or otherwise brought to their personal notice?*"

It is not in dispute that the respondents were served with the urgent chamber application that resulted in the said interim order. They opposed the application.

On the day of the meeting, the first applicant advised the respondents in attendance, who included the first respondent, the third respondent and the second respondent's proxy, that an interim order had been obtained by the applicant prohibiting the meeting. The applicant showed the respondents what she claimed was a copy of the court order. It had been issued on 26 March 2024, a day before the meeting.

An examination of the order, which is filed of record, shows that it was issued on 26 March 2024. It bears the judge's signature. The respondents have taken issue with the fact that the order did not have a date stamp. Neither did it have the armorial bearing that appears on the face of court orders. That made it questionable. They took the view that it was not an authentic copy of a court order, disregarded it and went ahead with the meeting.

The record shows, on page 214, the same court order with a date stamp. The date stamp shows 2 April 2024 as the date it was issued. The date stamp appears on the face of the order i.e. on the first page. It also appears on the signature page and is affixed next to the judge's signature. What this means is that this order was officially issued on 2 April 2024.

What is baffling is how the first applicant managed to obtain an unstamped copy of the court order which she brought to the meeting of 27 March 2024. There is no explanation

in the first applicant's papers as to how this was achieved. There is no evidence of service of a duly issued court order on the respondents before or on the day of the meeting in question.

In my view, the copy brought by the first applicant herself to the meeting cannot be a sufficient basis for imputing liability for contempt of court on the part of the respondents. Such an inference becomes even more untenable when the record shows that a duly stamped order was only issued subsequently, on 2 April 2024.

**DISPOSITION**

In the circumstances, the court is of the considered view that the facts of this matter do not meet the threshold for the granting of an order of contempt of court.

**In the result, it is ordered that:**

1. The application be and is hereby dismissed.
2. The applicants bear the respondents' costs.

**MANYANGADZE J**:…….

*Gambe Law Group,* applicants' legal practitioners
*Hogwe Nyengedza Legal Practitioners,* respondents' legal practitioners